

IC 23-17-25.5 Chapter 25.5. Restrictions on the Regulation of Charitable Organizations

23-17-25.5-1	"Charitable organization"
23-17-25.5-2	"State agency"
23-17-25.5-3	Restriction on reporting requirements; exceptions

IC 23-17-25.5-1 "Charitable organization"

Sec. 1. As used in this chapter, "charitable organization" means any organization described in Section 501 of the Internal Revenue Code.

As added by P.L.40-2023, SEC.1.

IC 23-17-25.5-2 "State agency"

Sec. 2. As used in this chapter, "state agency" has the meaning set forth in IC 4-1-13-1.

As added by P.L.40-2023, SEC.1.

IC 23-17-25.5-3 Restriction on reporting requirements; exceptions

Sec. 3. (a) Except as otherwise specifically required or authorized by federal law, and except as provided in subsection (b), a:

- (1) state agency; or
- (2) state official;

may not impose on a charitable organization any filing or reporting requirements that are more stringent or burdensome than those imposed by, or authorized under, state or federal law.

(b) The limitation set forth in subsection (a) does not apply:

- (1) to requirements imposed in connection with:

- (A) state grants or contracts; or
 - (B) fraud investigations; or

- (2) in connection with an enforcement action against a specific charitable organization.

As added by P.L.40-2023, SEC.1.